

AICON 26

Background Guide

UN Women (UNW)

Agenda

Addressing Rising Threats to Women's Safety in the Age of AI Deepfakes and
Migration Crises During Regional Conflict

Letter from the Executive Board

The Executive Board of UN Women extends its warmest regards to all participants. As delegates who have sat on both sides of the placard at a number of Model United Nations conferences, we understand exactly what a background guide is for. It is a starting point for research and not a substitute for it, and it is certainly not a document that hands you your answers on a silver platter.

This guide sets out the factual terrain, the legal instruments, and the genuine disagreements that surround the agenda "Addressing Rising Threats to Women's Safety in the Age of AI Deepfakes and Migration Crises During Regional Conflict." We would ask you to read it with two questions in mind. First, what does your country's own law and practice already do on each of these issues, and what has your delegation said about it in the General Assembly, the Human Rights Council, the Commission on the Status of Women, or before the treaty bodies? Second, where does your delegation's interest actually lie when protection, sovereignty, security, and technology policy pull in different directions? Positions built only on sympathy for victims collapse in the first round of debate. Positions built on your state's real regulatory posture and diplomatic alignments survive it.

We would also draw your attention to the way this agenda is framed. It joins four things that are usually studied separately: synthetic media, gender-based violence, forced displacement, and armed conflict. That joining is deliberate, and delegates who treat them as four unrelated topics will find themselves debating four separate agendas badly rather than one agenda well.

Come with an open mind, come having read primary documents rather than summaries of them, and come prepared to be wrong about something. That is where the learning happens.

Thank you,

The Executive Board

Co-Chairperson:

Co-Chairperson:

Moderator:

Nature and Proof of Evidence

Documents from the following sources will be considered as credible proof for any allegations made in committee or statements that require verification:

Reuters: Appropriate documents and articles from the Reuters News agency will be used to corroborate or refute controversial statements made by the committee.

UN Documents: Documents by all UN agencies will be considered sufficient proof. Reports from all UN bodies, including treaty-based bodies and special procedure mandate holders, will also be accepted.

National Government Reports: Government reports of a given country used to corroborate an allegation on the same aforementioned country will be accepted as proof. The documents stated above will hold a binding nature of establishment.

NOTE: Other sources like Wikipedia, Amnesty International, Human Rights Watch, commercial technology research firms, or newspapers such as the Guardian will not be accepted as credible proof, but may be used for a better understanding of any issue and even be brought up in debate, if the information given in such sources is in line with the beliefs of a government or a delegate.

The background guide cannot be used or cited as a valid source for credible proof.

Introduction

Three developments have converged over roughly the past five years, and this agenda exists at the point where they meet.

The first is a collapse in the cost of fabrication. Producing convincing synthetic imagery of a specific, identifiable person once required technical skill, computing power, and time. Diffusion models and consumer-facing applications have reduced that to a handful of source photographs, a smartphone, and in many cases no payment at all. What has not changed is who is targeted. Independent surveys of publicly accessible deepfake video, beginning with the widely cited 2019 study by Deeptech and repeated by later commercial researchers, have consistently found that the overwhelming majority of such video is sexual in nature and that its subjects are almost entirely women, with estimates ranging between roughly ninety and ninety-eight per cent depending on sampling method. Delegates should treat the precise figure with caution, since these are not official statistics, but the direction of the finding is not seriously disputed. The technology is general purpose. Its dominant present use against named individuals is not.

The second is the scale and character of contemporary displacement. Global forced displacement passed 120 million people in 2024 according to UNHCR, driven by Sudan, Ukraine, Myanmar, the Sahel and the eastern Democratic Republic of the Congo among others, and roughly half of that population is female. Displacement is now typically protracted rather than temporary and is increasingly digitally mediated, since people find routes, move money, verify identity, contact family and access assistance through phones. That dependency is itself a vulnerability, and the humanitarian system has in the process become a very large processor of sensitive biometric data about people in no practical position to refuse consent.

The third is the return of large-scale armed conflict and with it the routine use of information operations as an instrument of war. Gendered content is used within those operations because it works. It is cheap, it travels, it produces social consequences wholly disproportionate to the effort of producing it, and in many societies the target cannot rebut it without amplifying it.

Together these produce a specific harm profile. A woman who is a journalist, an aid worker, a local official, a witness, or simply a registered refugee can now be discredited, extorted or endangered by material that costs almost nothing to make, is difficult to attribute, is hosted beyond the reach of any authority likely to act, and against which she has no practical remedy. In a stable state with a functioning police service and a cooperative platform, she has a very bad experience. In a displacement setting during conflict, the same content can cost her family contact, her asylum claim,

her employment, her physical safety or her life. The central analytical question before this committee is therefore the following. How can states and international institutions protect women from technology-enabled gender-based violence and exploitation when conflict, displacement, weak institutions, and cross-border movement make prevention, accountability, and access to justice significantly more difficult? Almost every protective mechanism the international system has built assumes that at least one state possesses both jurisdiction and capacity. In the situations this agenda concerns, frequently none does.

1. AI Deepfakes and Technology-Facilitated Gender-Based Violence

A deepfake, in ordinary usage, is synthetic or manipulated audio, image, or video depicting a real and identifiable person doing or saying something they did not do or say. The term is imprecise and the imprecision matters legally. Some conduct involves wholly generated material, some involves an authentic image altered in part, and some involves authentic material presented in a false context, which is usually called a cheapfake and which remains more common and often more effective than sophisticated synthesis. Legislation drafted narrowly around "artificial intelligence" or "deep learning" will miss much of the harm. Legislation drafted around the effect on the depicted person captures more of it. Delegates writing operative clauses should know which of the two they are doing.

The principal harm types overlap. Non-consensual intimate imagery, whether authentic, altered, or wholly synthetic, is by volume the dominant form, and the harm does not depend on the viewer believing the image is real, which is one reason labelling and provenance requirements are at best a partial answer. Sexual extortion has been transformed by the same tools, since an extortionist no longer needs compromising material and can manufacture it from a public social media photograph; law enforcement agencies in several jurisdictions, including the United States Federal Bureau of Investigation, have reported sharp increases in financially motivated sextortion since 2022, much of it organised and transnational. Identity manipulation and fraud, including synthetic documents, synthetic faces used to defeat remote identity verification, and impersonation of aid workers or resettlement officials, is a growing operational problem for humanitarian agencies, and fraudulent recruitment offering non-existent employment or resettlement is a documented trafficking method that synthetic media makes cheaper and more scalable. Gendered disinformation, meaning coordinated false or manipulated content attacking women in public life through specifically sexual or domestic framing, is the political form of the same harm; the 2021 UNESCO and International Center for Journalists study of online violence against women journalists found that a very large proportion of respondents had experienced online abuse and that a significant minority subsequently reduced their reporting or left the profession. Doxxing and stalking convert online targeting into physical risk, and for a woman in a camp the publication of a shelter number or a distribution schedule is not a privacy inconvenience but a targeting aid.

Three structural features make this class of harm unusually difficult to remedy, and delegates should be able to explain all three.

Proof of falsity is harder than it appears. Detection tools exist but degrade quickly against new generation methods, perform poorly on compressed and re-uploaded material, and produce probabilistic rather than categorical outputs. A detector reporting a likelihood score, using a proprietary model, is not straightforwardly admissible in most legal systems. There is also the inverse problem, sometimes called the liar's dividend: as synthesis becomes plausible, authentic evidence of real atrocities can be dismissed as fabricated, which is a serious and under-discussed risk for accountability mechanisms that depend on victim video and open-source material.

Attribution is harder still, since generation is local, distribution is pseudonymous, and identifying a creator usually requires subscriber data held by a private company in a foreign jurisdiction, obtained through a legal process that is slow and frequently unavailable to the state where the victim actually is. Responsibility is also diffuse. Model developers, hosting providers, platforms, payment processors and the individual creator each hold part of the causal chain and none holds all of it, while most legal systems attach liability to an identifiable actor with a culpable state of mind. This harm is produced by a supply chain.

Against all of this sits a genuine countervailing interest that delegates cannot wish away. Every mechanism capable of removing fabricated sexual content quickly is also capable of removing lawful speech quickly. Every provenance system capable of authenticating a photograph is also capable of linking that photograph to the device and the person that made it, which is precisely what a dissident, a war crimes documenter, or an activist in exile cannot afford.

2. Women's Safety During Armed Conflict

Conflict-related sexual violence is neither new nor primarily technological. The Secretary-General's annual reports on conflict-related sexual violence, produced under the monitoring arrangements established by Security Council resolution 1960 (2010), verify cases annually across a listed set of situations and consistently note that verified figures represent a small fraction of actual incidence. The barriers are familiar: stigma, absence of functioning courts, fear of reprisal, absence of medical services, and the practical impossibility of investigation during active hostilities. The recognised forms include rape and sexual assault, sexual slavery, forced and early marriage, forced pregnancy, trafficking into exploitation, abduction, violence at checkpoints and in detention, and exploitation by armed groups and, in documented instances, by those deployed to protect civilians.

What conflict does to the digital dimension of this agenda is fourfold.

It expands the actor set. Violence is committed by state forces, by non-state armed groups, by paramilitaries with contested command relationships, by criminal networks operating in the space conflict opens, and by opportunistic individuals. Different actors attract different legal regimes. State armed forces engage state responsibility and command responsibility. A non-state armed group is bound by common Article 3 and by customary international humanitarian law but is not party to human rights treaties, often has no assets, and has no incentive to cooperate. Sanctions listings and individual criminal responsibility are the practical instruments against the latter, and both are slow.

It militarises the information environment. Sexualised propaganda, fabricated confessions, and manufactured evidence of misconduct are used to discredit specific women who are obstacles: local officials, negotiators, human rights documenters, medical staff, and the women's organisations that constitute much of the civil society layer in conflict-affected areas. Fabricated statements attributed to humanitarian organisations are used to disrupt aid delivery and to justify restrictions on access. Fabricated atrocity footage is a low-cost method of triggering reprisal violence, and women are disproportionately the targets of that reprisal.

It destroys the evidentiary chain. Forensic examination, medical documentation and secure storage are the foundation of any later prosecution and in active conflict are frequently unavailable or held by an actor with an interest in the outcome, while digital evidence adds volatility, since platform content is deleted, sometimes by the platform's own automated removal of graphic material, and metadata is stripped on upload.

It suppresses participation. The measurable effect of sustained gendered digital attack on women in public roles is withdrawal, and where those women are the negotiators, monitors and local intermediaries on whom protection work depends, the attack achieves an operational objective that would otherwise require violence.

3. Migration, Displacement and Digital Dependency

Displaced women face the same digital threats as everyone else, with three aggravating features.

The first is documentation. A woman who cannot establish who she is cannot open a bank account, register a complaint, secure lawful employment, prove a family relationship, or in many systems bring a case at all. Statelessness compounds this. Articles 27 and 28 of the 1951 Refugee Convention require contracting states to issue identity papers and travel documents, but these obligations bite only once status is recognised, and recognition is precisely what is often delayed for years. Undocumented women are therefore simultaneously more exposed to identity fraud and less able to prove that it has occurred.

The second is dependency. Reliance on smugglers, informal employers, landlords, and unregistered brokers creates relationships in which the threat of exposure has real force. Fabricated intimate content used against a woman in transit is not principally an attack on her reputation; it is a control mechanism, and it operates alongside debt bondage and document confiscation as a standard tool of trafficking. UNODC's Global Report on Trafficking in Persons continues to find that women and girls together constitute the majority of detected victims worldwide, that they are disproportionately trafficked for sexual exploitation, and that recruitment through online platforms is increasingly detected.

The third is data. Humanitarian identity systems hold biometric and biographic records on tens of millions of displaced people. UNHCR's registration environment was built to prevent fraud and make assistance verifiable, and it does both. It also creates a concentrated store of exactly the data that would be most damaging if disclosed to a state of origin, a party to the conflict, or a criminal network. Delegates arguing for centralised registries or international databases should expect to be asked about the

2021 controversy over the sharing of Rohingya biometric data collected in Bangladesh. The point is not that registration is wrong. It is that consent practices in which refusal effectively means loss of assistance, and rules on onward transfer that are largely unenforceable by the people whose data it is, remain unsettled.

Camp and urban displacement settings also have their own information dynamics, since rumour spreads quickly and correction slowly in populations with low connectivity, limited literacy in the host state's language and well-founded distrust of official information. Connectivity restrictions imposed for stated security reasons, such as the internet shutdown in the Cox's Bazar camps between 2019 and 2020, cut residents off from family, health information and any means of reporting abuse while doing very little to inconvenience criminal networks that have other channels, and delegates proposing device confiscation or platform blocking as a protection measure should be prepared to defend that record.

4. Regional Conflict, Information Warfare and Gendered Disinformation

Conflict changes the threat environment in ways that are directly relevant to the technology question. State and non-state parties alike now treat the information domain as a theatre of operations, and psychological operations, propaganda, and disinformation are planned alongside kinetic activity rather than after it. Gendered disinformation is a subset of this with distinctive characteristics: it targets women in public roles using sexual, moral or domestic framing rather than substantive political attack, and it recruits ordinary social conservatism into the amplification of a state or armed group's objective.

Synthetic media can be weaponised during conflict to impersonate individuals and issue false instructions or surrender statements, to fabricate confessions by detained persons, to incite communal violence through manufactured atrocity material, to discredit victims and witnesses by producing sexual content depicting them, to undermine humanitarian organisations by fabricating staff misconduct, to create false exculpatory evidence for perpetrators, and to intimidate women out of public life altogether. The last of these does not require the content to be believed. It requires only that it be circulated.

Women humanitarian workers, journalists and human rights defenders are attacked in two registers at once, professionally and sexually, and the sexual register produces family and community consequences that professional attack does not. There is at present no international mechanism that treats a documented campaign of gendered digital attack on women peacebuilders in a listed conflict situation as triggering any consequence for anyone.

5. AI Governance and Platform Regulation

There is no global instrument governing synthetic media. What exists is a set of divergent national and regional approaches, and delegates should know the main ones with reasonable precision.

The European Union has the most complete architecture. The Digital Services Act imposes notice and action obligations on hosting services, systemic risk assessment

and mitigation duties on very large online platforms, and a supervisory structure combining national coordinators with direct Commission enforcement. The Artificial Intelligence Act, Regulation 2024/1689, entered into force in August 2024 and phases in over several years, with Article 50 requiring that deepfake content be disclosed as artificially generated or manipulated, subject to an exception for evidently artistic or satirical work. Directive 2024/1385 on combating violence against women and domestic violence, adopted in May 2024, obliges member states to criminalise the non-consensual production or sharing of intimate or manipulated intimate material, cyberstalking, cyber harassment, and online incitement, with transposition due in 2027. These instruments regulate conduct and services within the internal market and reach foreign providers principally through market access rather than through extraterritorial enforcement in any classical sense.

The United Kingdom's Online Safety Act 2023 imposes duties of care enforced by Ofcom, with offences covering the sharing of intimate images including synthetic ones, and subsequent legislation has addressed the creation of purported intimate images as a distinct offence; commencement has been staged and delegates should verify current dates.

The United States has no general federal AI statute. The TAKE IT DOWN Act, signed in May 2025, requires covered platforms to remove non-consensual intimate imagery including AI-generated material within forty-eight hours of a valid victim request, enforced by the Federal Trade Commission. It sits alongside a patchwork of state statutes and against the background of Section 230 of the Communications Decency Act, which limits intermediary liability for third-party content and remains the largest structural difference between American and European approaches, and against First Amendment jurisprudence that constrains content-based regulation more tightly than in any other major jurisdiction.

India regulates principally through the Information Technology Act 2000 and the Intermediary Guidelines Rules of 2021, which require intermediaries to remove non-consensual intimate imagery, including artificially morphed material, within twenty-four hours of complaint on pain of losing safe harbour. Sections 66E, 67 and 67A of the Act, provisions of the Bharatiya Nyaya Sanhita and the Digital Personal Data Protection Act 2023 complete the framework, and the Ministry of Electronics and Information Technology has issued advisories on deepfakes and consulted on labelling of synthetic content. India is also a significant voice in the argument that global platform governance should not be set by the regulatory choices of the states in which platforms happen to be incorporated.

Elsewhere, China's provisions on deep synthesis and generative AI impose labelling and real-name registration requirements that are effective at the labelling objective and simultaneously illustrate its civil liberties cost. Denmark has proposed a likeness-based approach modelled on copyright, the African Union has adopted a continental AI strategy alongside the Malabo Convention which entered into force in 2023 with limited ratification, and ASEAN has issued non-binding guidance on deepfake response. At the United Nations level, the Global Digital Compact of September 2024 and the General Assembly's 2025 decision to establish an independent international scientific panel on artificial intelligence and a global

dialogue on AI governance constitute the current multilateral track. Both are deliberative and neither creates obligations.

Delegates should also understand provenance and its limits. The Coalition for Content Provenance and Authenticity standard attaches cryptographically signed metadata at the point of capture or generation, and invisible watermarking embeds a signal in a model's output. Both are useful and both have known weaknesses: metadata is stripped by most platforms on upload and by ordinary screenshotting, watermarks degrade under compression, cropping and adversarial editing, and neither applies to open-weight models run locally with safety layers removed. Provenance also carries an inverse risk, since authentic but unsigned content may come to be treated as suspect, which disadvantages precisely those least likely to be using authenticated capture devices. A committee proposing mandatory provenance must say what happens to unsigned content, and who decides.

6. Accountability and Jurisdiction

Consider the case this agenda poses. A woman displaced from country A is registered in a camp in country B. Sexual imagery of her is generated by a person in country C, using a model developed by a company incorporated in country D, running on servers in country E, distributed through a platform headquartered in country F and incorporated in country G, with data stored in country H. It is viewed in eighty countries. Who is responsible?

Territorial jurisdiction is the default in criminal law, and every state along that chain can assert some version of it, since most systems accept jurisdiction where a constituent element or a substantial effect of the offence occurs on their territory. In practice several states have jurisdiction on paper and none possesses the combination of jurisdiction, evidence, custody of the suspect, and political will required to act. The victim's state of residence is typically the one with the least investigative capacity and the least leverage over the relevant companies.

Extraterritorial jurisdiction may be asserted on the basis of the offender's nationality, the passive personality principle based on the victim's nationality, the protective principle, and in a narrow category of cases universal jurisdiction. Universal jurisdiction is available for grave breaches, torture and, in the practice of a number of states, crimes against humanity and war crimes including sexual violence; it is not available for the fabrication of intimate imagery and delegates should not claim that it is. Passive personality is the most plausible route for a state protecting its nationals abroad, but a displaced woman may not be a national of any state willing to act and a stateless woman is not a national of any state at all. This is the structural gap the committee should articulate: the entire architecture of extraterritorial protection runs through nationality, and displacement is very often the condition of having no state that will claim you.

Mutual legal assistance is the formal mechanism, operating through bilateral treaties, the UNTOC framework, the Budapest Convention, and the new United Nations cybercrime convention. It is slow, with reform literature citing average processing times measured in many months, which for volatile digital evidence is frequently equivalent to no assistance at all. Expedited preservation requests, which freeze data

pending a full request, are the practical workaround and are the single most useful thing around which to build capacity. Dual criminality requirements block assistance where the conduct is not an offence in the requested state, which matters directly here because criminalisation of synthetic intimate imagery is far from universal. Extradition adds nationality bars, political offence exceptions, and human rights barriers to surrender.

Platform cooperation is discretionary in most of the world. Large providers operate law enforcement portals and respond to properly formed requests from jurisdictions where they have a legal presence, but a police service in a low-income host state with no local corporate entity, no established channel and a request in a language the provider does not process is in a materially different position. This inequality of access is among the most concrete things a resolution can address.

State responsibility is a separate track from individual criminal responsibility and delegates conflate the two constantly. Under the law of state responsibility as reflected in the International Law Commission's 2001 Articles, the conduct of non-state actors is attributable to a state where they act on its instructions or under its direction or control, a threshold the International Court of Justice set high in *Bosnia v Serbia*. Short of attribution, a state may still breach its own due diligence obligations by failing to prevent, investigate, or punish. Due diligence is an obligation of conduct assessed against a state's knowledge and capacity, which makes it both the most promising and the most easily evaded basis for accountability in this field.

7. The Women, Peace and Security Framework

Security Council resolution 1325 (2000) established the framework now organised around four pillars: participation, protection, prevention, and relief and recovery. It has been supplemented by nine further resolutions, of which the most operationally significant are 1820 (2008), recognising sexual violence as a tactic of war and a matter of international peace and security; 1888 (2009), creating the Special Representative of the Secretary-General on Sexual Violence in Conflict and the Team of Experts on the Rule of Law; 1889 (2009) on participation and indicators; 1960 (2010), establishing the monitoring, analysis and reporting arrangements and the practice of listing parties credibly suspected of patterns of sexual violence; 2106 (2013) on accountability; 2122 (2013) on participation; 2242 (2015), linking the agenda to counter-terrorism and creating the Informal Expert Group; and 2467 (2019), which adopted a survivor-centred approach to accountability and is best remembered for what was removed from it, since language on sexual and reproductive health was dropped under pressure and three permanent members abstained.

Delegates should be precise about the legal character of these instruments. Resolutions adopted under Chapter VII create binding obligations; most WPS resolutions are not, and their force is political and institutional rather than obligatory in the manner of a sanctions resolution. Their real effect has been on the machinery of the United Nations system: peace operation mandates, reporting requirements, the listing practice, and the national action plans that over one hundred states have adopted with highly uneven funding.

Whether that machinery reaches digitally mediated harm is a question this committee must confront honestly. The framework was designed around physical acts, in identifiable places, attributable to identifiable parties. Its monitoring instruments count incidents of a kind a protection officer can verify. Its listing mechanism attaches to parties to a conflict, not to platforms, model developers, or anonymous distributed networks. The indicators adopted in 2010 do not measure online targeting of women in public life, and the reporting cycle does not systematically capture it, although recent Secretary-General reports and Council open debates have begun to reference technology-facilitated violence. Whether the right response is to extend existing WPS instruments, to build the response inside human rights and criminal law machinery instead, or to accept that a problem driven substantially by private commercial actors sits poorly in the Security Council at all, is a genuine question on which delegations will differ.

8. Existing Mechanisms and Their Limitations

Delegates should resist the reflex to propose a new international body. The following already exist, and a resolution that improves them is far more credible than one that duplicates them. For each, be ready to state the mandate, the funding source, whether it can compel anything, and what it has demonstrably achieved.

The Office of the Special Representative of the Secretary-General on Sexual Violence in Conflict, created by resolution 1888, provides advocacy, coordination through the UN Action network of some twenty entities, and the Team of Experts on the Rule of Law which deploys to support national accountability efforts; it is small, depends heavily on voluntary contributions, and its listing recommendations carry no automatic consequence. UN Women itself holds a coordination and normative mandate under General Assembly resolution 64/289, servicing the Commission on the Status of Women, supporting national action plans and running country programming on ending violence against women, with no enforcement power and very largely voluntary funding, a point worth remembering when drafting operative clauses that assign it new tasks.

The Gender-Based Violence Area of Responsibility, led by UNFPA within the protection cluster, coordinates field response, and the Inter-Agency Standing Committee guidelines set the operational standard; the Call to Action on Protection from Gender-Based Violence in Emergencies is a voluntary commitment with no enforcement mechanism. UNHCR holds supervisory responsibility under Article 35 of the Refugee Convention and runs registration and resettlement referral, IOM handles migration management and counter-trafficking casework, and UNODC services the Conference of the Parties to UNTOC, publishes the Global Report, and delivers legislative assistance, with the trafficking review mechanism agreed in 2020 being peer-review based and non-punitive.

Among human rights mechanisms, the Special Rapporteur on violence against women and girls has reported specifically on technology-facilitated gender-based violence, the Special Rapporteurs on trafficking and on freedom of expression have addressed adjacent questions, OHCHR runs the B-Tech project on business and human rights in technology, and the CEDAW Committee's individual communications procedure is

available only against states party to the Optional Protocol.

On enforcement and industry infrastructure, INTERPOL operates the International Child Sexual Exploitation database, Europol runs analytical projects on trafficking and child sexual exploitation, and the Financial Action Task Force has issued guidance on the associated financial flows. The Internet Watch Foundation and the National Center for Missing and Exploited Children operate hash-sharing infrastructure that is the closest existing analogue to what a synthetic imagery response would require, StopNCII operates a victim-initiated hash system for adult intimate imagery, and the Global Internet Forum to Counter Terrorism is the standard example of both the utility and the accountability deficit of industry-led content coordination.

Most of these are coordination bodies funded by voluntary contributions with no compulsory powers. That is not a reason to dismiss them. It is the reason that "establish a new agency" is a weak proposal and "give an existing mechanism a defined function, a funding line, and a reporting obligation" is a strong one.

Key Points of Contention

The following are real fault lines rather than rhetorical ones, and delegates should expect to be pushed on them.

Rapid removal against due process. A twenty-four or forty-eight hour takedown mandate is meaningful protection for victims and is also, at scale, an instruction to automate, and automated removal produces false positives in exactly the categories least able to absorb them: documentation of atrocities, sexual health information, reclaimed speech, and journalism. Who bears the cost of the error, and what appeal exists, are the operative questions.

Provenance and authentication against anonymity. Content authentication works best when tied to a verified device or account, which is directly opposed to the interests of people whose safety depends on not being identifiable, a category including many of the women this agenda concerns. The same logic applies to centralised hash-sharing systems and identity registries, which are effective and simultaneously concentrate risk, and in displacement contexts the entity most interested in the data is often the state the person fled.

Sovereignty against enforcement. Proposals for cross-border investigative powers, direct requests to providers or supranational review are read by a substantial group of states as encroachment, while proposals routing everything through consent-based mutual assistance are read by others as a guarantee that nothing will happen. Closely related is intermediary immunity against platform liability, the core structural disagreement between the United States and the European Union, which cannot be resolved by a preambular clause.

Innovation against regulation, with a distributional dimension. States hosting AI industry resist obligations on developers, states hosting none of it are more willing to impose them and are simultaneously least able to enforce anything against a foreign provider, and compliance costs fall hardest on smaller providers, which can entrench the largest incumbents.

Criminalisation against civil and administrative remedy. Criminal law expresses seriousness and is close to useless where the perpetrator is unidentifiable and abroad, while civil and administrative routes reach platforms and produce actual removal but require access to courts and legal aid that displaced women rarely have.

Screening against protection. Every proposal to detect fraudulent documentation and synthetic identity in asylum systems raises the risk of wrongly rejecting genuine claimants, and biometric and algorithmic verification systems have documented accuracy disparities across demographic groups.

International Law Pertinent to the Agenda

Delegates must distinguish throughout between what the law actually requires of a state party, what a treaty body has interpreted it to require, and what states are merely encouraged to do. All three are legitimate material for argument. Only the first may be described as an obligation.

Charter of the United Nations (1945). Article 1(3) makes promotion of respect for human rights without distinction as to sex a purpose of the Organization. Article 8 provides that there shall be no restrictions on the eligibility of men and women to participate in any capacity and under conditions of equality in its organs. Articles 55 and 56 commit members to joint and separate action in cooperation with the Organization for the achievement of universal respect for human rights.

Universal Declaration of Human Rights (1948). Article 12 protects against arbitrary interference with privacy and attacks upon honour and reputation. Article 14 recognises the right to seek and enjoy asylum from persecution. Article 19 protects the freedom to seek, receive and impart information through any media and regardless of frontiers. The Declaration is a General Assembly resolution and not a treaty, although parts of it are widely accepted as customary international law.

Convention on the Elimination of All Forms of Discrimination against Women (1979). Note first that CEDAW contains no express provision on violence against women; delegates who assert otherwise will be corrected. Article 2 requires states parties to pursue by all appropriate means a policy of eliminating discrimination, including through legislation and effective legal protection, and Article 6 requires all appropriate measures to suppress traffic in women and exploitation of prostitution. The prohibition of gender-based violence was developed interpretively by the Committee in General Recommendation 19 (1992) and restated in General Recommendation 35 (2017), which articulates the due diligence standard under which a state may incur responsibility for failing to prevent, investigate, prosecute, punish and provide reparation for acts by private persons, and which expressly extends to violence in technology-mediated environments. General Recommendation 30 (2013) covers women in conflict prevention, conflict and post-conflict situations and takes the position that the Convention applies extraterritorially where a state party exercises jurisdiction, a reading several states have expressly rejected. General Recommendations 32 (2014) and 33 (2015) address refugee status, asylum, nationality and statelessness of women, and access to justice. The Optional Protocol (1999) provides individual communications and inquiry procedures, available only against states party to it.

International Covenant on Civil and Political Rights (1966). Article 2(1) obliges states to respect and ensure Covenant rights to all individuals within their territory and subject to their jurisdiction, and is the starting point of every extraterritoriality argument in this agenda; the Human Rights Committee's General Comment 31 extends this to persons within a state's power or effective control, a position some states have contested. Article 17 protects against arbitrary or unlawful interference with privacy and unlawful attacks on honour and reputation. Article 19(3) permits restrictions on expression only where provided by law and necessary for respect of the rights of others or for national security, public order, public health or morals. Every takedown and criminalisation proposal will be tested against that three-part standard.

International Covenant on Economic, Social and Cultural Rights (1966). Article 2(1) operates on progressive realisation to the maximum of available resources, producing obligations of effort rather than of immediate result. Article 12 recognises the right to the highest attainable standard of physical and mental health, which is the basis for survivor service obligations.

Convention on the Rights of the Child (1989). Article 34 requires protection from all forms of sexual exploitation and sexual abuse and Article 35 requires measures to prevent abduction, sale and traffic in children. The Optional Protocol on the sale of children, child prostitution and child pornography (2000) is drawn broadly enough that a substantial argument exists that wholly synthetic sexual depictions of identifiable children fall within it, and a number of states have legislated on that basis. General Comment 25 (2021) addresses children's rights in relation to the digital environment.

Convention relating to the Status of Refugees (1951) and its 1967 Protocol. Article 1A(2) defines a refugee by reference to a well-founded fear of persecution on five grounds; gender is not one of them, and gender-related claims are generally brought under membership of a particular social group following UNHCR's 2002 Guidelines on International Protection, which are not binding and are applied unevenly. Article 31 prohibits penalties for irregular entry subject to conditions. Article 33 states the principle of non-refoulement, subject to the narrow exception in Article 33(2). Articles 27 and 28 concern identity papers and travel documents, and Article 35 concerns cooperation with UNHCR in its supervisory function. Article 3 of the Convention against Torture (1984) states the parallel prohibition on return to a risk of torture and admits of no exception.

United Nations Convention against Transnational Organized Crime (2000) and its Protocols. Article 3 of the Trafficking in Persons Protocol supplies the act, means and purpose definition, with means irrelevant where the victim is a child. Article 5 contains mandatory criminalisation obligations. Articles 6 and 7, on victim assistance and temporary residence, are qualified by language such as "in appropriate cases" and "shall consider implementing." That asymmetry between hard criminalisation duties and soft protection duties is the clearest illustration in this agenda of the required and encouraged distinction, and delegates seeking stronger victim protection are proposing to harden language that was deliberately softened in 2000. Article 5 of the Smuggling of Migrants Protocol provides that smuggled migrants shall not become liable to prosecution under that Protocol for the fact of having been smuggled.

Geneva Conventions (1949) and Additional Protocols (1977). Common Article 3 prohibits violence to life and person and outrages upon personal dignity in non-international armed conflict and binds non-state armed groups as well as states. Article 27 of the Fourth Geneva Convention provides that women shall be especially protected against rape, enforced prostitution and any form of indecent assault, restated in Additional Protocol I Article 76(1) and, for non-international conflict, in Additional Protocol II Article 4(2)(e). The ICRC customary law study records the prohibition of rape and other sexual violence as customary in both types of conflict. Note that "grave breach" is a defined category applying in international armed conflict and that not every serious violation is technically a grave breach. Note also that international humanitarian law prohibits acts primarily intended to spread terror among civilians but contains no general prohibition on propaganda or disinformation, and delegates should not assert one.

Rome Statute of the International Criminal Court (1998). Article 7(1)(g) lists rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilisation and other comparable sexual violence as crimes against humanity, and Articles 8(2)(b)(xxii) and 8(2)(e)(vi) list the same conduct as war crimes. Articles 12, 13 and 17 govern jurisdiction and complementarity: a territorial or nationality link, a Security Council referral, or an Article 12(3) declaration is required, and the Court acts only where a state with jurisdiction is unwilling or genuinely unable to do so. Article 68 concerns protection and participation of victims and witnesses. Akayesu (ICTR, 1998) established that rape can constitute genocide, Kunarac (ICTY, 2001) established sexual slavery as a crime against humanity, and Ongwen (ICC, 2021) produced the first conviction for forced pregnancy and treated forced marriage as another inhumane act; the Prosecutor's policy on gender-based crimes was revised in December 2023. The Statute does not criminalise the fabrication of imagery, which enters international criminal law only as part of the conduct element of incitement or persecution, or as a challenge to the reliability of digital evidence.

Security Council resolutions on Women, Peace and Security. Resolutions 1325 (2000), 1820 (2008), 1888 (2009), 1889 (2009), 1960 (2010), 2106 (2013), 2122 (2013), 2242 (2015), 2467 (2019) and 2493 (2019). Most are not adopted under Chapter VII and their force is institutional rather than directly obligatory on member states.

Council of Europe instruments. The Budapest Convention on Cybercrime (2001), including its Article 35 twenty-four hour network and its Second Additional Protocol of 2022 on enhanced cooperation and disclosure of electronic evidence, has parties well beyond Europe. The Istanbul Convention (2011) covers psychological violence and stalking, and GREVIO's General Recommendation No. 1 (2021) on the digital dimension of violence against women is the most developed treaty-body treatment of this precise subject.

United Nations Convention against Cybercrime. Adopted by the General Assembly in December 2024 and opened for signature in Hanoi in 2025. Delegates must verify its current signature and ratification status, since forty ratifications are required for entry into force. Its negotiating record is instructive, since a substantial coalition opposed the text on the ground that cooperation on offences beyond core cybercrime

could be used to obtain evidence in cases involving speech or conduct that is not criminal in the requesting state's counterpart.

Non-binding frameworks. The Beijing Declaration and Platform for Action (1995), the Global Compact for Safe, Orderly and Regular Migration (2018), the Global Compact on Refugees (2018) and the Global Digital Compact (2024). These are political commitments. They may be cited as evidence of consensus. They may not be cited as obligations.

Case Studies

Case Study 1: Fabricated Sexual Imagery Used Against a Journalist

In 2018 the Indian journalist Rana Ayyub was targeted with a fabricated sexual video following her public commentary on a criminal case. The material was mass-amplified, followed by publication of her personal contact details and then by credible threats of physical violence. United Nations special procedure mandate holders issued a public statement calling on the authorities to protect her. The case illustrates both the sequence this agenda concerns, namely fabrication, amplification, doxxing and physical threat, and the remedy problem, since the material sat across multiple platforms and jurisdictions, no creator was ever meaningfully identified, and the consequences to the target were immediate while any legal response was not.

Case Study 2: Humanitarian Biometric Data and Onward Transfer

Registration of Rohingya refugees in Bangladesh involved the collection of biometric data by and with UNHCR. In 2021 it was reported that data collected in that process had been shared with Myanmar authorities in the context of repatriation assessment, prompting an internal review and a broader debate about consent in circumstances where refusal to register means loss of assistance. The case is the standard reference against which any proposal for centralised registries, international databases or expanded identity verification will be measured, and it illustrates that the principal risk in humanitarian data is not criminal breach but lawful onward transfer to an actor whose interests are adverse to the data subject.

Case Study 3: The Deletion of Digital Evidence of Atrocity

Investigators and civil society documenters working on Syria, Myanmar and other situations have repeatedly reported that video evidence of violations, including sexual violence, has been removed from major platforms by automated moderation systems classifying it as graphic or extremist material, often before it could be archived. Independent archiving efforts followed, but the underlying tension has not been resolved. The case matters because it shows the two halves of this agenda pulling against each other: the same rapid automated removal that protects a woman from circulating fabricated imagery of herself can destroy the record of what was actually done to her.

Case Study 4: The European Union's Layered Regulatory Response

The European Union has, uniquely, addressed this problem through three interlocking instruments: the Digital Services Act for platform obligations and systemic risk, the Artificial Intelligence Act for transparency and labelling of synthetic content under

Article 50, and Directive 2024/1385 requiring member states to criminalise non-consensual sharing of intimate or manipulated intimate material, cyberstalking and cyber harassment. The package is the most complete national or regional answer in existence. Its limitations are equally instructive: it operates through market access rather than extraterritorial enforcement, depends on national transposition and enforcement capacity that varies widely, phases in fully only towards 2027, and offers no route to remedy for a woman outside the Union whose imagery is generated and hosted outside it.

Case Study 5: Rapid Takedown by Statute

The TAKE IT DOWN Act, signed into law in the United States in May 2025, criminalises publication of non-consensual intimate imagery including AI-generated material and requires covered platforms to remove such material within forty-eight hours of a valid request from the depicted individual, enforced by the Federal Trade Commission. It is the most direct legislative answer yet adopted to the victim's core problem, which is speed, and it illustrates every objection to that answer: the request mechanism can be abused by bad-faith complainants, forty-eight hours at scale means automated adjudication, process for a wrongly targeted uploader is limited, and the statute reaches only platforms subject to United States jurisdiction. Delegates should compare its design with the twenty-four hour requirement under India's 2021 Intermediary Guidelines Rules and ask why the enforcement outcomes have differed.

Conclusion

This agenda is not a technology problem with a legal annex, nor a protection problem with a technology annex. It is a single problem in which the failure of each element compounds the others. Conflict removes the institutions that would investigate, displacement removes the nationality link through which extraterritorial protection is exercised, synthetic media removes the evidentiary certainty on which both criminal accountability and asylum determination depend, and cross-border infrastructure removes the practical possibility that any one authority can act alone. A woman at the centre of all four is protected on paper by CEDAW, by the Geneva Conventions, by the Refugee Convention and by the Palermo Protocol, and protected in practice by almost nothing.

That said, the scale of the problem is not a licence to propose anything. The international system already contains a considerable amount of relevant machinery, most of it underfunded and very little of it adapted to digitally mediated harm, and improving what exists by giving it defined functions, funding lines and reporting obligations is a more serious contribution than announcing a new agency. Equally, every mechanism proposed here has a mirror image. Rapid removal is also rapid censorship, authentication is also identification, investigative reach is also surveillance reach, and centralised data is also concentrated risk.

The question this committee must ultimately confront is therefore this. How can the international community create meaningful protection for women against AI-enabled abuse during conflict and displacement without creating mechanisms that undermine state sovereignty, refugee rights, privacy, freedom of expression, or legitimate technological innovation? This guide does not answer that question, and delegates

should be suspicious of any position paper that answers it easily. A good resolution will not eliminate the trade-offs. It will name them, allocate them deliberately, and build in the review and remedy provisions that allow the allocation to be corrected when it proves wrong.

Suggested Research and References

The following are starting points only. Delegates are expected to locate the primary documents themselves and to consult their own state's submissions, reservations and national legislation in every case.

On the United Nations track: the most recent annual Report of the Secretary-General on conflict-related sexual violence and the annual Report on women and peace and security, together with Security Council resolutions 1325, 1820, 1888, 1889, 1960, 2106, 2122, 2242, 2467 and 2493, all available through the United Nations Digital Library at documents.un.org; CEDAW Committee General Recommendations 19, 30, 32, 33 and 35 and the reports of the Special Rapporteur on violence against women and girls on online and technology-facilitated violence, at [ohchr.org](https://www.ohchr.org); UNHCR's Global Trends: Forced Displacement and its 2002 Guidelines on International Protection No. 1 on gender-related persecution, at [unhcr.org](https://www.unhcr.org); the UNODC Global Report on Trafficking in Persons and the negotiating record of the Ad Hoc Committee on the United Nations Convention against Cybercrime, at [unodc.org](https://www.unodc.org); and UN Women's programme documentation on ending violence against women, at [unwomen.org](https://www.unwomen.org).

On the regional and national track: Regulation (EU) 2024/1689 (Artificial Intelligence Act), Regulation (EU) 2022/2065 (Digital Services Act) and Directive (EU) 2024/1385, at eur-lex.europa.eu; GREVIO General Recommendation No. 1 (2021) on the digital dimension of violence against women and the Second Additional Protocol to the Budapest Convention, at [coe.int](https://www.coe.int); the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, at meity.gov.in; and the text of the TAKE IT DOWN Act, at congress.gov. For context rather than proof, delegates may consult the 2021 UNESCO and International Center for Journalists study *The Chilling: Global Trends in Online Violence Against Women Journalists*, at [unesco.org](https://www.unesco.org).

QARMA

Delegates should be prepared to address the following.

- 1) Does existing treaty law already oblige states to prevent, investigate and remedy technology-facilitated gender-based violence, and if a new instrument is required, what precisely would it add that due diligence under CEDAW does not?
- 2) What is owed to a stateless or undocumented woman, given that extraterritorial protection operates through nationality?
- 3) Should obligations attach to model developers as distinct from platforms, and if so, which obligations, enforced by whom, against a developer with no legal presence in the affected state?
- 4) What minimum definition of non-consensual intimate imagery, expressly covering synthetic and altered material, could satisfy dual criminality requirements without dictating national sentencing policy?

- 5) How should the monitoring, analysis and reporting arrangements be adapted, if at all, to capture technology-facilitated harm, and what consequence should follow from documentation?
- 6) What binding standards, if any, should govern the collection, retention, onward transfer and deletion of biometric data held by humanitarian actors?
- 7) For every mechanism proposed: who implements, funds and monitors it, who has jurisdiction, how is compliance verified, what happens when a state refuses, how are victims protected, and how could it be abused by a bad-faith government?